

DEEMED ADMITTED by Defendant.

3. The genuineness of the documents attached to the RFAs (referenced as the “Terms and Conditions” and the “billing statement”), pursuant to RFA No. 2, is DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

7. 9:00 AM CASE NUMBER: L25-04056
CASE NAME: TD BANK USA, N.A. VS. TAHAYA GRANT
HEARING IN RE: MOTION TO VACATE JUDGMENT
FILED BY:
TENTATIVE RULING:

Defendant and Judgment Tahaya Grant (“Defendant”) filed a Motion to Vacate Judgment on November 17, 2025 seeking to vacate the default and default judgment previously entered herein (“Motion to Vacate”). The Motion to Vacate was set for hearing on January 6, 2025. No opposition has been filed.

Defendant’s motion was signed on November 13, 2025 and filed by the clerk on November 17, 2025. Because the motion, as submitted, did not have an assigned hearing date, time and department, that information was stamped on the caption page by the clerk at the time of filing. However, the moving party’s Proof of Service reflects that the motion papers were served on November 13, 2025 before the hearing information was given by the clerk of the Court. See Proof of Service reflecting service of the Motion to Vacate filed as part of the moving papers on November 17, 2025.

In such circumstances, a moving party will typically prepare and serve an amended notice of motion to ensure that the opposing party has received proper notice of the date, time and department for the hearing of the motion. No amended notice of motion appears on the docket. No other pleadings were filed by the moving party Defendant reflecting the giving of proper notice of the motion hearing information to the other party.

Disposition

The Court finds and orders as follows:

1. **Continued Hearing Date on Motion to Vacate.** In its discretion, the Court hereby continues the matter to **February 10, 2026, 9:00 a.m.** in **Department 14** of the Court to ensure that notice of the hearing has properly been given to the Plaintiff. Defendant shall file and serve an amended notice of the motion **on or before January 9, 2026.**